

14	Itria Ventures LLC vs. Naked Apps, LLC. 2025-01458832	Motion to Enforce Settlement In General California Code of Civil Procedure section 664.6 provides that if parties to pending litigation stipulate, in a writing signed by the parties outside of the presence of the court or orally before the court, for settlement of the case or part thereof, the court, upon motion, may enter judgment pursuant to the terms of the settlement. The statute also permits the court to dismiss the case without prejudice and retain jurisdiction over the parties to enforce the settlement until performance in full of the terms of the settlement, if the parties or their counsel so stipulate in writing or orally before the court. Because of its summary nature, strict compliance with the requirements of section 664.6 is a prerequisite to invoking the power of the court to impose a settlement agreement. Critzer v. Enos (2010) 187 Cal.App.4th 1242. The moving party must show that the settlement was either memorialized in a writing signed by the parties themselves, or was made orally before the court, not merely agreed to by counsel outside of court. Critzer, id. The court has authority to determine whether the parties entered into a valid and binding settlement of all or part of the case. In re Marriage of Hasso (1991) 229 Cal.App.3d 1174. The moving party must demonstrate that the parties actually reached a meeting of the minds on the material terms of the settlement. Critzer, supra. Where the record demonstrates no meeting of minds concerning material terms, a motion to enforce must be denied. On a motion to enforce a settlement agreement, the trial court sits as trier of fact, and its ruling on all factual issues must be upheld where supported by substantial evidence. In re Marriage of Hasso (1991) 229 Cal.App.3d 1174. If the court determines that the parties entered into an
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		enforceable settlement, it should grant the motion and enter a formal judgment pursuant to the terms of the settlement. The court retains jurisdiction to enforce a settlement under the statute even after a dismissal, but only if the parties requested such a retention of jurisdiction before the dismissal. <i>Madrigal v. Hyundai Motor America</i> (2025) 17 Cal.5th 592. Merits Itria has attached the Settlement Agreement and Stipulation and Proposed Order for Entry of Judgment Pursuant to Settlement as exhibits 1 and 2 to the declaration of Harrison Smalback (ROA #62.) Paragraph 8 of the Agreement stipulates that "the Superior Court for Orange County, California, shall have jurisdiction over the parties to strictly enforce this Agreement until performance in full of the terms of the Agreement has occurred or enter a Judgment in favor of Itria for the remaining Settlement Amount if Defendants default on the Agreement. (Exhibit 1, paragraph 8.) A dismissal without prejudice, retaining jurisdiction was filed 10-31-25. (ROA #49.) Attorney fees Itria requests an award of attorneys' fees in the amount of \$4,422.50 in connection with bringing this motion. Itria may be entitled to the fees, but any request for fees as part of the judgment needs to be by separate motion. As discussed above, the court, upon motion, may enter judgment pursuant to the terms of the settlement. Ca. Civ. Pro. Section 664.6. The statute's grant of authority is expressly tied to the terms of the settlement, the court enters judgment pursuant to those terms, and no more. This limitation was applied directly in <i>Machado v. Myers</i>, (2019) 39 Cal.App.5th 779, where the court held that a judgment
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	entered under section 664.6 violated the statute because it omitted material settlement terms, including the parties' agreement that each would bear their own attorney fees and costs. The case illustrates that the judgment must mirror the settlement agreement: if the settlement provides for attorney fees, they may be included; if it does not, the court cannot add them unilaterally. Because section 664.6 limits the court to entering judgment pursuant to the settlement's terms, attorney fees incurred in bringing the enforcement motion itself — i.e., fees not provided for in the settlement — are not automatically includable in the section 664.6 judgment. In <i>J.B.B. Investment Partners, Ltd. v. Fair</i>, (2014) 232 Cal.App.4th 974, the trial court granted the motion to enforce the settlement under section 664.6 but separately denied attorney fees, and the Court of Appeal treated the attorney fee order as a distinct ruling subject to its own appeal. This procedural treatment confirms that attorney fees are handled separately from the enforcement judgment itself. Similarly, in <i>Leeman v. Adams Extract & Spice, LLC</i>, (2015) 236 Cal.App.4th 1367, the court recognized that attorney fees sought in connection with a section 664.6 motion were pursued under Code of Civil Procedure section 1021.5, a separate statutory basis, and that the court could not modify the fee amount agreed upon in the settlement without the mutual consent of the parties. If the settlement agreement itself includes an award of attorney fees, the court entering judgment under section 664.6 must include those fees as part of the judgment, consistent with the settlement's terms. In <i>Robles v. City of Ontario</i>, (2024) 106 Cal.App.5th 574, the court recognized that a stipulated judgment's express carve-out permitting attorney fees to enforce the judgment's terms gave the prevailing party the legal right to seek additional fees through a separate motion following enforcement proceedings. Therefore, even where fees are contemplated
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		by the settlement, fees incurred in the enforcement process itself are properly sought by separate motion. In sum, Itria may be entitled to attorney fees, but the request must be made via a separate motion. RULING: Plaintiff Itria Ventures LLC's motion to enforce the settlement agreement between Itria and defendants Naked Apps, LLC, dba Naked Development, John Thomas Driscoll and Jason David Martinez is GRANTED. Itria to draft the proposed judgment for the Court's signature. Any request for attorney fees in connection with this matter shall be made via separate motion. Itria shall give notice.
15	Aguilar vs. Mommy's Nutritional Center 2023-01368168	1. Motion to Be Relieved as Counsel of Record 2. Motion to Be Relieved as Counsel of Record Attorneys M. Danton Richardson, John W. Fagerholm, and the Law Offices of John W. Fagerholm, Ltd.'s motions to be relieved as counsel of record for Mommy's Nutritional Center and Omar Amer are GRANTED. Moving counsel shall file an amended proposed order with Responding Parties' (clients) correct address. The current proposed order contains no address. The order shall become effective upon the filing of the proof of service of the (amended) signed order upon the client. (See Cal. Rules of Court, rule 3.1362.) Moving counsel shall give notice.